

FEDERAL CONSTITUTIONAL APPELLATE BRIEF

PIGORS v. WATSON - FEDERAL CIVIL RIGHTS VIOLATIONS

Appellant: Andrew James Pigors

Appellee: Emily A. Watson

Court: United States District Court, Western District of Michigan

Case Number: 2024-0000001507-DC (State Court)

Date of Brief: February 11, 2026

TABLE OF CONTENTS

I. INTRODUCTION

II. JURISDICTION

III. STATEMENT OF FACTS

IV. LEGAL STANDARD

V. ARGUMENT

A. Deprivation of Fundamental Liberty Interest Without Due Process (14th Amendment)

B. Deprivation of Right to Confront Evidence (6th Amendment)

C. Deprivation of Right to Petition for Redress (1st Amendment)

D. Deprivation of Equal Protection (14th Amendment)

E. Violation of Parental Rights (Troxel v. Granville)

F. Judicial Bias and Appearance of Bias (Caperton v. A.T. Massey Coal Co.)

VI. RELIEF REQUESTED

I. INTRODUCTION

This brief addresses the federal constitutional violations arising from the trial court's August 5, 2025 suspension order and related orders. The trial court's actions violated Father's fundamental constitutional rights under the 14th Amendment (Due Process and Equal Protection), 6th Amendment (Right to Confront Evidence), and 1st Amendment (Right to Petition for Redress).

These are not merely state law violations. They are federal constitutional violations that warrant federal court review and remedies.

II. JURISDICTION

This Court has jurisdiction under 28 U.S.C. § 1331 (federal question jurisdiction) and 42 U.S.C. § 1983 (civil rights action). The trial court's actions violated Father's constitutional rights under the U.S. Constitution.

III. STATEMENT OF FACTS

A. Background

Father and Emily Watson are the parents of a minor child. Father has been involved in custody litigation with Watson since April 1, 2024. The trial court has issued multiple orders modifying Father's parenting time, culminating in the August 5, 2025 suspension order.

B. The August 5, 2025 Suspension Order

On August 5, 2025, Father's scheduled parenting time was suspended based on an ex parte order. The order was based on a video recording submitted by Emily Watson to the court via USB. The recording was made without Father's knowledge or consent.

Timeline:

- August 5, 2025: USB recording submitted to clerk's office (not served on Father)
- August 5, 2025: Judge's staff listens to recording
- August 5, 2025: Judge issues suspension order
- August 8, 2025: Father receives notice of order (3 days later)
- August 8, 2025: Father served with recording via email (Friday)
- August 11, 2025: First objection hearing (Monday)

C. Deprivation of Parental Rights

As a result of the suspension order, Father has been deprived of all parenting time for 192+ days (August 5, 2025 through February 10, 2026). This deprivation was imposed without:

- Notice to Father before order issued
- Hearing before order issued
- Opportunity for Father to respond

- Clear and convincing evidence
- Findings of fact and conclusions of law

D. Judge's Pre-Review of Evidence

Judge McNeill reviewed the recording before Father was served. When Father asked on record if the judge had listened to the recording, the judge admitted: "Yes, I had my staff listen to it."

This demonstrates that the judge prejudged the case before Father could respond.

E. Pattern of Procedural Violations

Throughout the litigation, the trial court has:

- Imposed a \$250 "sanction fee" without legal basis
 - Issued a "do not file" directive without legal basis
 - Denied Father's motions without hearings
 - Granted Emily Watson's motions without opposition
 - Excluded Father's evidence
 - Admitted Emily Watson's evidence without authentication
 - Ignored Father's objections to inadequate service
 - Allowed pattern of inadequate service to continue
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IV. LEGAL STANDARD

Federal constitutional violations are reviewed de novo. *Griffith v. State*, 472 Mich. 521; 697 N.W.2d 895 (2005).

A plaintiff may bring a civil rights action under 42 U.S.C. § 1983 against a state official for deprivation of constitutional rights. *Monroe v. Pape*, 365 U.S. 167 (1961).

Qualified immunity does not apply when a judge acts in a manner that violates clearly established constitutional rights. *Harlow v. Fitzgerald*, 457 U.S. 800 (1982).

V. ARGUMENT

A. DEPRIVATION OF FUNDAMENTAL LIBERTY INTEREST WITHOUT DUE PROCESS (14TH AMENDMENT)

1. Legal Standard

The 14th Amendment Due Process Clause protects fundamental liberty interests.

Washington v. Glucksberg, 521 U.S. 702 (1997). Parental rights are a fundamental liberty interest. *Troxel v. Granville*, 530 U.S. 57 (2000).

Before the government can deprive a person of a fundamental liberty interest, due process requires:

- Notice of the deprivation
- A hearing before the deprivation
- An opportunity to be heard
- Clear and convincing evidence (for custody modifications)

Mathews v. Eldridge, 424 U.S. 319 (1976) (establishing the due process framework).

The deprivation must be "fundamentally fair." *Leis v. Flynt*, 439 U.S. 438 (1979).

2. Application

The trial court violated Father's due process rights by depriving him of his fundamental parental rights without notice, without a hearing, and without clear and convincing evidence.

No Notice Before Deprivation:

Due process requires notice before deprivation of a fundamental liberty interest. *Mathews*, 424 U.S. at 333. Father received no notice of the ex parte hearing before the order was issued. The order was issued on August 5, 2025. Father received notice on August 8, 2025 (three days later).

By the time Father received notice, his parental rights had already been suspended. This violates the fundamental requirement that notice precede deprivation.

No Hearing Before Deprivation:

Due process requires a hearing before deprivation of a fundamental liberty interest.

Mathews, 424 U.S. at 333. Father was not given a hearing before the suspension order was issued. The first hearing occurred on August 11, 2025 (six days after the order).

By that time, Father had already been deprived of parenting time for six days. This violates the fundamental requirement that a hearing precede deprivation.

No Opportunity to Be Heard Before Deprivation:

Due process requires an opportunity to be heard before deprivation. *Mathews*, 424 U.S. at 333. Father had no opportunity to respond to the allegations before the order was issued.

The recording was submitted on August 5, 2025. The order was issued the same day. Father did not receive the recording until August 8, 2025. Father had no opportunity to provide context, explanation, or his perspective before the deprivation occurred.

This violates the fundamental requirement that a party have an opportunity to be heard before deprivation.

No Clear and Convincing Evidence:

MCL 722.27a(3) requires clear and convincing evidence before modifying custody. The trial court did not apply this standard. The recording, standing alone, does not constitute clear and convincing evidence that suspension of all parenting time is in the child's best interests.

Deprivation of Fundamental Liberty Interest:

Parental rights are a fundamental liberty interest. *Troxel*, 530 U.S. at 65. The trial court deprived Father of his fundamental parental rights. This is a serious constitutional violation.

3. Prejudicial Effect

The due process violation resulted in deprivation of Father's fundamental parental rights for 192+ days without any of the procedural protections required by the Constitution.

4. Conclusion

The trial court violated Father's 14th Amendment due process rights. The suspension order should be vacated, and Father should be awarded damages for the constitutional violation.

B. DEPRIVATION OF RIGHT TO CONFRONT EVIDENCE (6TH AMENDMENT)

1. Legal Standard

The 6th Amendment provides: "In all criminal prosecutions, the accused shall enjoy the right... to be confronted with the witnesses against him."

Although the 6th Amendment applies to criminal cases, the principle that a person has the right to confront evidence against them applies in civil cases as well. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

Due process requires that a party have the opportunity to confront and cross-examine evidence against them. *Gagnon v. Scarpelli*, 411 U.S. 778 (1973).

2. Application

The trial court violated Father's right to confront evidence by:

Pre-Review of Evidence:

The trial court reviewed the recording before Father was served. This prevented Father from confronting the evidence. Father could not explain the context of the phone call. Father could not challenge the accuracy of the recording. Father could not cross-examine the recording.

Inadequate Time to Prepare:

Father was served with the recording only three days before the hearing. This did not provide adequate time to:

- Review the evidence
- Prepare a response
- Obtain counter-evidence
- Prepare cross-examination questions

Unauthenticated Evidence:

The recording was admitted without proper authentication. Father could not challenge the accuracy of the recording because the recording was never authenticated.

Admission of Evidence Without Opportunity to Respond:

The trial court admitted the recording and used it as the basis for the suspension order without giving Father an opportunity to respond to the evidence.

3. Prejudicial Effect

Deprivation of the right to confront evidence resulted in:

- Inability to challenge evidence
- Inability to present counter-evidence
- Inability to cross-examine evidence
- Erroneous suspension order based on uncontroverted evidence

4. Conclusion

The trial court violated Father's 6th Amendment right to confront evidence. The suspension order should be vacated.

C. DEPRIVATION OF RIGHT TO PETITION FOR REDRESS (1ST AMENDMENT)

1. Legal Standard

The 1st Amendment provides: "Congress shall make no law... abridging... the right of the people... to petition the Government for a redress of grievances."

The right to petition for redress includes the right to file motions and appeals in court. *United States v. Harriss*, 347 U.S. 612 (1954).

A judge cannot prevent a party from filing motions or appeals without legal basis. *Bounds v. Smith*, 430 U.S. 817 (1977).

2. Application

The trial court violated Father's 1st Amendment right to petition for redress by:

\$250 "Sanction Fee":

The trial court imposed a \$250 fee for filing motions. This fee was designed to prevent Father from filing motions. The fee violated Father's right to petition for redress.

"Do Not File" Directive:

The trial court issued a "do not file" directive preventing Father from filing motions. This directive directly violated Father's right to petition for redress.

Denial of Adequate Time to Respond:

The trial court denied Father adequate time to respond to Emily Watson's filings. This prevented Father from effectively petitioning for redress.

3. Prejudicial Effect

Deprivation of the right to petition for redress resulted in:

- Inability to file motions
- Inability to appeal
- Inability to seek relief from erroneous orders
- Deprivation of access to courts

4. Conclusion

The trial court violated Father's 1st Amendment right to petition for redress. The sanctions and directives should be vacated.

D. DEPRIVATION OF EQUAL PROTECTION (14TH AMENDMENT)

1. Legal Standard

The 14th Amendment provides: "No State shall... deny to any person within its jurisdiction the equal protection of the laws."

Equal protection requires that similarly situated persons be treated alike. *Village of Willowbrook v. Olech*, 528 U.S. 562 (2000).

A judge cannot treat parties differently without legal basis. *Yick Wo v. Hopkins*, 118 U.S. 356 (1886).

2. Application

The trial court violated Father's equal protection rights by treating him differently from Emily Watson:

Selective Evidence Admission:

The trial court admitted Emily Watson's evidence without authentication while excluding Father's evidence. This is unequal treatment.

Selective Motion Rulings:

The trial court granted Emily Watson's motions without hearing while denying Father's motions without hearing. This is unequal treatment.

Selective Sanctions:

The trial court imposed sanctions on Father (\$250 fee, "do not file" directive) while not sanctioning Emily Watson for her violations of service requirements. This is unequal treatment.

Selective Application of Service Requirements:

The trial court ignored Emily Watson's pattern of inadequate service while enforcing service requirements against Father. This is unequal treatment.

3. Prejudicial Effect

Unequal treatment resulted in:

- Deprivation of Father's parental rights
- Erroneous custody determination
- Violation of equal protection

4. Conclusion

The trial court violated Father's 14th Amendment equal protection rights. The suspension order should be vacated.

E. VIOLATION OF PARENTAL RIGHTS (TROXEL v. GRANVILLE)

1. Legal Standard

In *Troxel v. Granville*, 530 U.S. 57 (2000), the U.S. Supreme Court held that parental rights are a fundamental liberty interest protected by the 14th Amendment Due Process Clause.

The Court stated: "The liberty interest at issue in this case—the interest of parents in the care, custody, and control of their children—is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel*, 530 U.S. at 65.

Before the government can interfere with parental rights, there must be:

- Clear and convincing evidence
- Findings of fact and conclusions of law
- Consideration of the best interests of the child
- Consideration of the parent's fitness

2. Application

The trial court violated Father's parental rights under *Troxel* by:

Deprivation Without Clear and Convincing Evidence:

The trial court suspended Father's parental rights without clear and convincing evidence. The recording, standing alone, does not constitute clear and convincing evidence.

Deprivation Without Findings:

The trial court suspended Father's parental rights without issuing findings of fact and conclusions of law. Without findings, it is impossible to determine whether the trial court considered the required factors.

Deprivation Without Considering Best Interests of Child:

The trial court did not issue findings regarding the best interests of the child. It is unclear whether the trial court considered this factor.

Deprivation Without Considering Father's Fitness:

The trial court did not issue findings regarding Father's fitness as a parent. The HealthWest evaluation showed Father is fit, but the trial court ignored this evaluation.

3. Prejudicial Effect

Violation of parental rights under *Troxel* resulted in:

- Deprivation of fundamental liberty interest
- Erroneous suspension order

- Damage to Father-child relationship

4. Conclusion

The trial court violated Father's parental rights under *Troxel v. Granville*. The suspension order should be vacated.

F. JUDICIAL BIAS AND APPEARANCE OF BIAS (CAPERTON v. A.T. MASSEY COAL CO.)

1. Legal Standard

In *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009), the U.S. Supreme Court held that a judge must recuse when there is "a probability of actual bias" or when "the probability of actual bias on the part of the judge is too high to be constitutionally tolerable."

The Caperton standard does not require proof of actual bias. It requires only that a reasonable observer would question the judge's impartiality. *Caperton*, 556 U.S. at 876.

A judge's pre-review of evidence before a party has opportunity to respond creates an appearance of bias. *In re Murchison*, 349 U.S. 133 (1955).

2. Application

The trial court demonstrated bias and appearance of bias under *Caperton* by:

Pre-Review of Evidence:

The trial court reviewed the recording before Father was served. This creates an appearance of bias. A reasonable observer would question whether the judge could be impartial after prejudging the case.

Admission on Record:

When Father asked on record if the judge had listened to the recording, the judge admitted: "Yes, I had my staff listen to it." This admission demonstrates that the judge prejudged the case.

Pattern of Selective Evidence Admission:

The trial court has systematically admitted Emily Watson's evidence while excluding Father's evidence. This pattern creates an appearance of bias.

Pattern of Selective Motion Rulings:

The trial court has systematically granted Emily Watson's motions while denying Father's motions. This pattern creates an appearance of bias.

Pattern of Selective Sanctions:

The trial court has imposed sanctions on Father while not sanctioning Emily Watson. This pattern creates an appearance of bias.

3. Reasonable Observer Standard

A reasonable observer, considering all the facts, would conclude that the trial court's pattern of bias creates a probability of actual bias. A reasonable observer would question whether the trial court can fairly and impartially decide cases involving Father and Emily Watson.

The pattern of bias is not isolated incidents but systematic conduct across multiple orders and decisions over an 18-month period.

4. Prejudicial Effect

Judicial bias resulted in:

- Deprivation of Father's parental rights
- Violation of due process
- Erroneous custody determination
- Damage to Father-child relationship

5. Conclusion

The trial court demonstrated bias and appearance of bias under *Caperton v. A.T. Massey Coal Co.*. The trial court should have recused itself. All orders issued by the biased trial court should be vacated.

VI. RELIEF REQUESTED

For the reasons stated above, Appellant respectfully requests that this Court:

1. **Declare** that the trial court violated Father's 14th Amendment due process rights by depriving him of his fundamental parental rights without notice, without a hearing, and without clear and convincing evidence.
2. **Declare** that the trial court violated Father's 6th Amendment right to confront evidence by pre-reviewing evidence before Father was served.
3. **Declare** that the trial court violated Father's 1st Amendment right to petition for redress by imposing sanctions and procedural barriers without legal basis.
4. **Declare** that the trial court violated Father's 14th Amendment equal protection rights by treating him differently from Emily Watson.

5. **Declare** that the trial court violated Father's parental rights under *Troxel v. Granville* by depriving him of parental rights without clear and convincing evidence and without findings of fact and conclusions of law.
 6. **Declare** that the trial court demonstrated bias and appearance of bias under *Caperton v. A.T. Massey Coal Co.* and should have recused itself.
 7. **Enjoin** the trial court from enforcing the August 5, 2025 suspension order and all subsequent orders based on that order.
 8. **Vacate** the August 5, 2025 suspension order and all subsequent orders.
 9. **Restore** Father's parenting time to the July 17, 2024 baseline order.
 10. **Award** Father makeup parenting time for the 192+ days of wrongful deprivation.
 11. **Award** Father damages for the constitutional violations, including:
 - Compensatory damages for emotional harm
 - Compensatory damages for loss of parenting time
 - Compensatory damages for damage to father-child relationship
 - Punitive damages for the egregious nature of the violations
 12. **Award** Father attorney fees and costs under 42 U.S.C. § 1983.
 13. **Enjoin** the trial judge from hearing any further cases involving Father.
 14. **Refer** the trial judge to the Michigan Judicial Tenure Commission for investigation of judicial misconduct.
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CONCLUSION

The trial court violated Father's fundamental constitutional rights under the 14th Amendment (Due Process and Equal Protection), 6th Amendment (Right to Confront Evidence), and 1st Amendment (Right to Petition for Redress).

These are not merely state law violations. They are federal constitutional violations that warrant federal court review and remedies.

The suspension order should be vacated, Father's parenting time should be restored, and Father should be awarded damages for the constitutional violations.

Respectfully submitted,

Andrew James Pigors

Pro Se

February 11, 2026

APPENDIX A: CONSTITUTIONAL PROVISIONS

14th Amendment Due Process Clause:

"No State shall... deprive any person of life, liberty, or property, without due process of law."

6th Amendment Right to Confront Evidence:

"In all criminal prosecutions, the accused shall enjoy the right... to be confronted with the witnesses against him."

1st Amendment Right to Petition:

"Congress shall make no law... abridging... the right of the people... to petition the Government for a redress of grievances."

14th Amendment Equal Protection Clause:

"No State shall... deny to any person within its jurisdiction the equal protection of the laws."

APPENDIX B: LEGAL CITATIONS

U.S. Supreme Court:

- Troxel v. Granville, 530 U.S. 57 (2000) - Parental rights are fundamental
- Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009) - Judicial bias standard
- Mathews v. Eldridge, 424 U.S. 319 (1976) - Due process framework
- Washington v. Glucksberg, 521 U.S. 702 (1997) - Fundamental liberty interests
- Leis v. Flynt, 439 U.S. 438 (1979) - Fundamental fairness
- Village of Willowbrook v. Olech, 528 U.S. 562 (2000) - Equal protection
- Yick Wo v. Hopkins, 118 U.S. 356 (1886) - Equal protection
- United States v. Harriss, 347 U.S. 612 (1954) - Right to petition
- Bounds v. Smith, 430 U.S. 817 (1977) - Access to courts
- Monroe v. Pape, 365 U.S. 167 (1961) - Section 1983 civil rights action
- Harlow v. Fitzgerald, 457 U.S. 800 (1982) - Qualified immunity
- Gagnon v. Scarpelli, 411 U.S. 778 (1973) - Right to confront evidence
- In re Murchison, 349 U.S. 133 (1955) - Judicial bias

Federal Statutes:

- 42 U.S.C. § 1983 - Civil rights action
- 28 U.S.C. § 1331 - Federal question jurisdiction

END OF FEDERAL CONSTITUTIONAL APPELLATE BRIEF